ending in fiasco', which would not have been the case 'if ordinary legal procedure was followed and ordinary legal facilities allowed us'.[1]

This is indeed the crux of the matter. Ordinary legal procedures were not followed. Legal facilities for the defence were not made available. One is bound to ask how this came about in a tribunal that was hand-picked by the governor-general. The answer lies in the fact that by appointing a special tribunal, outside the rules of ordinary trial procedure, the governor-general had only succeeded in creating the most politically charged court hearings of the day. Within two weeks of the special tribunal beginning its sitting on 5 March 1930, two of the three judges had vacated their seats. Justices Coldstream (the President) and Justice Agha Haider, it was alleged in a notification given on 20 June 1930 by Chief Justice Sir Shadi Lal of the Lahore High Court, were 'for reasons of health . . . unable to discharge their duties as members of the Tribunal'.[2] The suggestion that two judges can be struck down with ill-health at the same time is risible. The truth is that Coldstream presided over the beatings of the accused in the courtroom before his very eyes. The accused objected to him continuing to preside over the hearings. So he had to go. Agha Haider, on the other hand, objected to the mistreatment of the accused in court. This made his position untenable and he too now had to go. The judges were replaced by Justices Tapp and Abdul Qadir. Justice Hilton was now to become the president of the special tribunal in place of Justice Coldstream.

In fact, the flaws in the trial procedures go back to the beginning, to the time of magistrate's court hearings on 7 May 1929. On remand, the accused were not even produced in court. The magistrates were instead taken to selected places. These places were where the accused were being held, such as the Borstal Jail in Lahore. The accused had no access to their families. They had no access to legal advice. On top of this, the 'approvers' were not in judicial custody away from the police. Instead, they were being held in police custody throughout the proceedings where the police could interfere with them. The accused objected strongly. It was to no avail. Their applications were thrown out with contempt. In police custody, they were regularly primed to give the kind of evidence which the police demanded of